



PRODUCTS LIABILITY INSURANCE QUESTIONNAIRE

YOU ARE TO DISCLOSE IN THIS FORM FULLY AND FAITHFULLY ALL FACTS WHICH YOU KNOW OR OUGHT TO KNOW, OTHERWISE YOU MAY RECEIVE NOTHING FROM THIS INSURANCE CONTRACT

- Applicant's Instructions:
- 1. Answer all questions.
 - 2. If space is insufficient to answer any questions fully, attach separate sheet.
 - 3. Application must be signed and dated by department manager or above.
 - 4. If the answer to any question is none, state "NONE".
 - 5. Please do not complete application earlier than 45 days before submission to Federal Insurance Company.

1. APPLICANT

- a) Full Name

b) Principal address

c) Subsidiaries or Divisions
- d) Sole venture

☐

Joint venture

☐

Other

☐

Importer

☐
- e) Manufacturer

☐

Wholesaler

☐

Retailer

☐
- Exporter

☐
- f) Years in business under present name
- g) Prior experience in this business under another name
- h) Present affiliation with other firms
- i) Sales and Receipts estimated for new policy year

2. PRODUCTS AND COMPLETED OPERATIONS

Describe your products and services. Include and identify, those acquired via acquisition or merger those planned for introduction in the next 12 months, and those previously discontinued. Show number of years involved with each product and indicate which product(s) you install, service or repair:

Products and Services	Years Involved	Principal End User	% of Gross Annual Sales

NOTE: (Attach brochures, catalogs, labels, instruction manuals, annual reports, and Product Surveys)

3. CLAIM HISTORY - 5 years or more

- a) Total aggregate losses, from ground up, including defence costs:

Policy Period	No. of Claims	Total Amount Paid	Amount Reserved BI PD	Total Incurred	Date Eval.

- b) Individual losses, valued \$5,000 or more from the ground up, including defence costs:

Date of Occurrence	Product Involved	Year Mfgd.	Describe Occurrence & Injury or Damage	Amount Paid & Reserved	Date Eval.



c) Are you aware of any other incidents which may result in claims against you? Yes ☐ No ☐

If Yes, please give details:

4. PRODUCT AND SALES DATA

a) For Principal Products or Service, indicate:

	Total Sales or Receipts	Product or Service	% of Total Sales	No. of Units Sold
Past 12 months				
2nd Prior Year				
3rd Prior Year				
4th Prior Year				
5th Prior Year				

What percentage of total sales are replacement parts? _____ %

- b) Do you import products or component parts? Yes ☐ No ☐
- c) Do you export products or have foreign operations? Yes ☐ No ☐
- d) Could any of your products or services be used on or in connection with:
1. aircraft/missile/aerospace? Yes ☐ No ☐
2. watercraft or offshore? Yes ☐ No ☐
3. transportation/ transit? Yes ☐ No ☐
4. life support service? Yes ☐ No ☐
- e) Do you make or handle any product that is explosive, flammable, or poisonous either by itself or in combination with other materials? Yes ☐ No ☐
- f) Could any of your products be classified as:
1. pharmaceuticals or medical devices Yes ☐ No ☐
2. cosmetics Yes ☐ No ☐
- g) Are any of your products sold under another's name or label? Yes ☐ No ☐
- h) Do you purchase materials or components from others? Yes ☐ No ☐

PLEASE EXPLAIN ALL OF THE ABOVE "YES" ANSWERS BELOW:

i) Briefly describe how your product(s) are to be used:

5. PROCESSING

- a) Do others assemble your products? Yes ☐ No ☐
- If assembled by others, do you supervise? Yes ☐ No ☐
- b) If installed by others, do you supervise or furnish instruction for the installation? Yes ☐ No ☐
- c) If you maintain and service your products, attach a copy of your standard service contract. Yes ☐ No ☐

- d) Who package your products? _____
- Who design your packaging? _____
- Who supply the packaging materials? _____
- How are they packed when sold? _____

Is any sterile packaging involved? Yes ☐ No ☐

Do you package for others? Yes ☐ No ☐

Do you package under trade names other than your own? Yes ☐ No ☐



6. MARKETING

a) Percentage of total sales to: Wholesalers _____ % Retailers _____ % Consumers _____ %

b) Sales Territory, Name of Products, and Amount of Sales:

- 1 List all products exported to USA/Canada and sales by product for the past five years as well as estimated sales for the up-coming year (please attach product brochures or others printed material describing products.

Products	2005	2004	2003	2002	2001

- 2 List all products exported Worldwide excluding USA/Canada and sales by product for the past five years as well as estimated sales for the up-coming year (please attach product brochures or others printed material describing products.

Products	2005	2004	2003	2002	2001

- 3 In regards to (2) above, please indicate approximate sales splits by country:

	%	%	%
	%	%	%
	%	%	%

- c) Suppliers and Distributors of your products
i) Do you hold them harmless or insure them?
ii) Do they hold you harmless or insure you?

Yes ☐ No ☐
Yes ☐ No ☐

If yes to either i or ii, please explain: _____

7. LOSS PREVENTION

- a) Have your products ever been subject to inquiry or investigation in relation to product safety by any governmental agency? If yes, attach details. Yes ☐ No ☐
- b) Do you have a written product recall plan? If yes, please attach. Yes ☐ No ☐
- c) Have you ever recalled products because of a potential product safety hazard? if yes, attach details and indicate percent of recovery. Yes ☐ No ☐
- d) Has your management issued a written policy statement on product safety which has been communicated to all employees? If yes, please attach. Yes ☐ No ☐
- e) Do you have a written product safety program for which specific individuals have responsibility for implementation? If yes, attach copy or outline. Yes ☐ No ☐

8. PRODUCT DESIGN

- a) Do you carry out your own design work? Yes ☐ No ☐
- b) Do you maintain records of design changes and reasons justifying these changes? Yes ☐ No ☐
- c) Are your designs subject to independent external review, testing or certification? If so, attach details and dates. Yes ☐ No ☐
- d) Are your products designed, tested, labeled and manufactured:
i) to meet or exceed all government and industry Yes ☐ No ☐



standards?

ii) for optimum safety in spite of misuse or abuse?

Yes ☐ No ☐

9. QUALITY CONTROL AND TESTING

- a) Are written testing procedures followed? Yes ☐ No ☐
- b) Do you have a quality control manager responsible only to top management? Yes ☐ No ☐
- c) Supplies and components:
- i) Are they ordered to your specifications? Yes ☐ No ☐
- ii) Have you determined which ones are critical to the safety of your final product? Yes ☐ No ☐
- iii) List those critical items, indicating whether testing is on a sample basis or on all units. Yes ☐ No ☐

iv) Are warranties obtained from all suppliers?

Yes ☐ No ☐

d) Final Products:

i) Briefly describe tests applied before sales:

ii) What percentages are tested?

_____%

ii) Are records of quality control test results kept so that you can identify at a later date what tests have been applied to a given product at a given time?

Yes ☐ No ☐

iii) How far back are your records kept? (specify date)

iv) If your products are manufactured to the specification of your customers, do they test the product upon receipt?

Yes ☐ No ☐

v) Do you receive an acceptance sign-off from your customer?

Yes ☐ No ☐

10. Instructions / Warnings / Advertising / Warranties

- a) Are hazards inherent in the final product, and warnings against foreseeable misuse and abuse made known to the ultimate user by:
- i) warning labels at the point of hazard? Yes ☐ No ☐
- ii) written instructions? Yes ☐ No ☐
- iii) other means? (attach details) Yes ☐ No ☐
- b) Are warnings / instructions in English? Yes ☐ No ☐
- c) Are instructions, warnings, labels and advertising texts subject to review, to ensure that they are complete and easily understood by the ultimate user, so as to avoid overstatement in relation to safety, or omissions in relation to hazards, by:
- i) legal counsel? Yes ☐ No ☐
- ii) top management? Yes ☐ No ☐
- iii) others? (attach details) Yes ☐ No ☐
- d) Do you expressly disclaim or limit warranties for your products? Yes ☐ No ☐
- e) Are all warranties and / or disclaimers reviewed by legal counsel? Yes ☐ No ☐
- f) Do you provide any specific training or instructions for the ultimate user in the proper use of your product? If yes, please describe. Yes ☐ No ☐
- g) Are salesmen and distributors made aware of your desire to be informed of cases where your product is used for a purpose for which was not designed? Yes ☐ No ☐

11. Loss Control and Defense

a) Explain how you can identify your products and parts from similar competitors' products and parts:

b) Can you determine, based on available records for all products you have sold:

i) when any given product was manufactured?

Yes ☐ No ☐

ii) to whom it was sold, and the date of sale?

Yes ☐ No ☐



- | | | | | |
|--|-----|--------------------------|----|--------------------------|
| iii) who supplied the parts and which of these go into the final products? | Yes | ☐ | No | ☐ |
| c) Do you maintain copies of old instructions or operation manuals and advertising materials? | Yes | ☐ | No | ☐ |
| d) Accident procedure: | | | | |
| i) Do you have a written procedure for obtaining information about product complaints, accidents and injuries involving your products? | Yes | ☐ | No | ☐ |
| ii) Have you made distributors aware of your desire for prompt notice of all complaints, accidents and injuries involving your product? | Yes | ☐ | No | ☐ |
| iii) Does your procedure provide for examining and preserving any allegedly defective product with the results of such examination recorded? | Yes | ☐ | No | ☐ |
| iv) Do reports on complaints, accidents, injuries, and the examination of products involved go to the person responsible for product safety? | Yes | ☐ | No | ☐ |
| v) Are results used for improving the product/process procedures? | Yes | ☐ | No | ☐ |

12. INSURANCE REQUESTED:

- a) Limits desired: _____
- b) Deductible desired: _____
- c) Present insurer: _____
- d) Proposed effective date : _____
-
- e) Has any insurer ever cancelled, restricted or refused to renew your liability insurance? *If yes, please explain.* Yes ☐ No ☐

ADDITIONAL EXPLANATION TO THE QUESTIONS DESIGNATED

I/We declare that the statements and particulars in this proposal are true and that I/We have not mis-stated or suppressed any material facts. I/We agree that this proposal, together with any other information supplied by me/us shall form the basis of any contract of insurance effected thereon. I/We undertake to inform insurers of any material alteration to these facts whether occurring before or after completion of the contract of insurance.

Signature
Name :
Title :
Date :